

HOLOGIC®
WTA TOUR

SAFEGUARDING CODE



WTA SAFEGUARDING CODE
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TABLE OF CONTENTS

I. Safeguarding Education And WTA Credential Eligibility System	5
II. Function Of The WTA Safeguarding Code	6
i. Administration And Compliance	7
ii. Application	7
iii. Jurisdiction	7
iv. Applicable Procedures	7
v. Reporting, Law Enforcement, And Whistleblower Protection, Generally	8
III. Definitions	9
IV. Rules And Applicable Procedures	12
i. Reporting Requirements	12
a. General Requirements	12
b. Reporting Suspected Child Abuse	13
c. Reporting Suspected Sexual Misconduct	13
d. Reporting Other Suspected Misconduct	13
e. Anonymous Reporting	14
f. Whistleblower Policy	14
ii. Prohibited Conduct	15
a. Criminal Charges Or Dispositions Of A Violent, Dangerous, Or Sexual Nature	15
1. Definitions	16
a. Criminal Charge	16
b. Criminal Disposition	16
2. Sexual Crimes Against Minors	16
b. Child Abuse	16
c. Sexual Misconduct And Abuse	17
d. Physical Misconduct And Abuse	19
e. Emotional And Psychological Misconduct And Abuse	20
f. Interference With A WTA Safeguarding Investigation Or Outcome	21
g. Retaliation	21
h. Making An Intentionally False Report	21

iii. Other Misconduct	22
a. Abuse Of Trust And Power Dynamics	22
b. Inappropriate Physical Contact With Minors	22
c. Violation Of Accommodation Rules Set Forth In WTA Rulebook	22
iv. Proceedings	
a. Initiating Proceedings	23
b. Application Of Substantive Rules	23
c. Multiple Related Claims	23
d. Statute Of Limitations	24
e. Effect Of Concurrent Proceedings	24
f. Notification To And Involvement Of Law Enforcement	24
g. Recognition Of Sanctions/Suspensions By Other Organizations (Reciprocity)	25
h. Interim Measures	25
i. Other Resolution Procedures	27
j. Rights Of The Participants	27
k. Investigation Report	30
l. WTA CEO Decision	30
1. Conflict	31
m. Request For Arbitration- Appeal	31
n. Burden Of Proof On Appeal	32
o. Appeal Rules	32
1. Application	32
2. Arbitrator Qualifications	32
3. Parties	32
4. Respondent's Right To Counsel	32
5. Confidentiality	33
6. Initiation Of Proceedings	33
7. Arbitrators And Appointment	33
8. Challenges To Appointment Of Arbitrator	34
9. Preliminary Matters	34
10. Ex Parte Communication	34
11. Requests For Arbitration To Review Sanctions Resulting From Criminal Charge(S) Or Disposition(S)	35

12. Admissibility Of Evidence	35
p. Stay Of Sanction Period	37
q. Confidentiality	37
v. Sanction Guidelines For Violations Of The Code	38
a. Sanctions Available	38
1. Warning	38
2. Fine	38
3. Probation	38
4. Suspension Of WTA Credential	38
5. Suspension or Termination of WTA Membership	38
6. Suspension Of Access To WTA Tournaments	39
7. Permanent Suspension	39
8. Other Discretionary Sanctions	39
b. Permanent Suspension Following Three Violations	39
c. WTA CEO Considerations	40
d. Policy on Sanction Publication	40
V. Appendix A - Locker Room Best Practices	41
VI. Appendix B - Accommodation Best Practices	43
VII. Appendix C - Arbitrator Qualification Requirements	47
VIII. Appendix D - WTA Safeguarding Poster	49
IX. Appendix E - Credentialed Person Annual Acknowledgement and Consent	50
X. Appendix G - Safeguarding and Mental Health	54
XI. Appendix H - Vulnerable Witness Procedural Guidelines	55
XII. Appendix I - WTA Safeguarding Program Fee Schedule	57

BACKGROUND AND PURPOSE

SAFEGUARDING EDUCATION AND WTA CREDENTIAL ELIGIBILITY SYSTEM

All Covered Persons seeking a credential to a player-protected area at a WTA tournament must complete the WTA Safeguarding Education course as part of the WTA's Credential Eligibility System ("CES"). The WTA Safeguarding Education course provides guidance for all Covered Persons on how to recognize, respond to, and report suspected Misconduct under the WTA Safeguarding Code. By completing the CES registration requirement, a Covered Person agrees to comply with all rules set forth in this Safeguarding Code.

All new WTA members must complete the WTA Safeguarding Education Course as part of the New Member Orientation (see Section XI.C.3 of the WTA Rulebook). In addition, WTA Safeguarding Posters [Appx. D], which provide guidance on how to report suspected Misconduct to the WTA Safeguarding Department, are posted throughout WTA tournament spaces.

FUNCTION OF THE WTA SAFEGUARDING CODE

This Safeguarding Code is a distinct and separate set of rules implemented by the WTA to enhance the safety of the WTA environment and all of its participants. The purpose of the WTA Safeguarding Code is to provide a clear and separate set of guidelines and requirements regarding certain behaviors previously covered by the WTA Code of Conduct, a subset of the WTA Rules.

The WTA recognizes that Safeguarding-related issues may arise during on-court activity; however, this Safeguarding Code is not intended to supplant or interfere with any on-court Code of Conduct matters (either for players or player support team members) outlined in the WTA Rules. This Safeguarding Code is not mutually exclusive to the WTA Rules and serves the purpose of establishing the appropriate standard of behavior for all Covered Persons both on and off the court.

ADMINISTRATION AND COMPLIANCE

This Safeguarding Code is administered by the WTA. All Covered Persons in the WTA environment must comply, in all respects, with these policies and procedures. All Covered Persons are responsible for knowing the information and rules delineated by this Safeguarding Code once published on the WTA website.

APPLICATION

This Safeguarding Code applies to all Covered Persons as defined herein. Any member, player support team member, WTA staff, tournament staff, or any other independent contractor participating in the WTA Tour or otherwise seeking a WTA credential must adhere to the rules and procedures herein at all times.

JURISDICTION

In order to ensure the safety of all Covered Persons under this Safeguarding Code, the WTA has the right to investigate and resolve (including by issuing sanctions) all Complaints alleging Misconduct in Violation of the rules herein. A Complaint received by the WTA may also involve the jurisdiction of another organization (such as the ATP, ITF, or a Grand Slam organization).

If any rules contained within this Safeguarding Code are deemed inconsistent with any relevant national [federal] or state laws of the country where the alleged Misconduct occurred, such laws will prevail for the purpose of criminal conviction only when the relevant law exceeds the rules contained herein. In all other Cases of alleged Misconduct, the rules herein shall prevail in respect to participation in the WTA Tour and the ability to obtain a WTA credential.

APPLICABLE PROCEDURES

The applicable procedures for reporting, investigating, and resolving alleged Misconduct depend on the nature of the Misconduct, as set forth in this Safeguarding Code below. The procedures set forth herein will be applied to any matter over which the WTA, within its sole discretion, accepts jurisdiction. However, if the WTA refers the Complaint to another tennis organization based upon the facts reported, the procedures set forth by that organizational body will apply. The WTA reserves the right to conduct an Investigation in conjunction with another tennis organization where appropriate.

REPORTING, LAW ENFORCEMENT, AND WHISTLEBLOWER PROTECTION, GENERALLY

It is WTA policy that any known or reasonably suspected acts of harassment, abuse, or other criminal Misconduct in Violation of this Safeguarding Code should be immediately reported to WTA.

All reporting is taken seriously by WTA and handled in a professional, discreet, and comprehensive manner in accordance with the investigative procedures set forth below. WTA Staff may be required by law to report any suspected Child Abuse or Child sexual Misconduct to local law enforcement. Any Adult Covered Person, as outlined below, is required to report suspected Child Abuse or Child sexual Misconduct to both the WTA Director of Safeguarding, as well as local law enforcement.

Regardless of whether an alleged Violation is proven, WTA will support Complainants that report in good faith. WTA will not retaliate, punish or in any way penalize a person who reports a perceived Violation in good faith. The WTA does not tolerate, however, use of this Safeguarding Code as a means of targeting persons in the WTA environment, and intentionally false reports made to the WTA will be treated as a Violation of this Safeguarding Code as outlined below.

DEFINITIONS

- **Adult** – An individual who is the age of 18 or older.
- **Age of Consent** – The Age of Consent pursuant to this Safeguarding Code is the age of 18, regardless of any national, federal, or state law.
- **Aid or Abet** – To Aid is to provide support or assistance to someone in conduct that is a Violation of the Safeguarding Code. To Abet is to encourage someone else to commit a Violation of the Safeguarding Code.
- **Appeal** – A formal request that any decision rendered by the WTA CEO be reviewed by an independent Arbitration process.
- **Appellant** – Any Covered Person who is found to have violated the Safeguarding Code who appeals any sanction or decision issued by the WTA.
- **Arbitration** – a hearing, requested by Appellant on Appeal, before an independent Arbitrator to review any sanction issued by the WTA. Only Respondents may request Arbitration.
- **Arbitrator** – Independent decision-maker hearing an Appeal during the Arbitration Process.
- **Case** – A Complaint that warrants further fact-finding by the Director of Safeguarding or, where appropriate, a third-party Investigation service.
- **Child Abuse** – Abuse of any kind (sexual, physical, or emotional) of anyone under the age of 18, or as defined by any national, federal, or state law. May also be termed Abuse of a Minor.
- **Claimant** – The person who is alleged to have experienced conduct that constitutes a Violation of this Safeguarding Code.
- **Complaint** – A formal report filed with the WTA alleging a breach of the Safeguarding Code.
- **Complainant** – Any person(s) filing a Complaint with the WTA alleging a breach of the Safeguarding Code.
- **Complicit** – Involved with others in an illegal activity or Violation of the Safeguarding Code.
- **Consent** – Permission for something to happen or agreement to do something. Consent requires knowingly agreeing to engage in an act, and must be demonstrated by clear words or actions from the person consenting to the act. The person consenting to an act must be legally competent to provide Consent. Any person who is under the age of 18 or who cannot understand the relevant implications of the action, either due to mental Incapacitation or impairment from drugs or alcohol, cannot provide valid Consent for purposes of this Safeguarding Code.

- **Covered Person** – Any person subject to this Safeguarding Code. Covered Persons are: WTA employees and contractors; WTA Directors; WTA designated officials; WTA Players (full and associate members); any non-WTA Player member competing in a WTA tournament; WTA Tournament Directors; WTA Sponsors and partners; Player Support Team members [including, but not limited to: coaches, agents, managers, physios, strength and conditioning coaches, health care providers, family members, and guests or similar associates of a player]; Tournament personnel [including, but not limited to: staff, officials, volunteers, contractors, sponsors, healthcare providers, members of the media, tournament guests]; and any persons credentialed by the tournament.
- **Credential Eligibility System** – the mechanism by which specific Covered Persons must obtain WTA Credential eligibility approval each year, which includes providing information and authorization for a Criminal Background Check, and requires completion of the WTA Safeguarding Education Course.
- **Criminal Background Check** – Criminal history check conducted by bona fide international, national or local law enforcement authorities.
- **Criminal Conduct** – Any criminal behavior as further defined and outlined in the Prohibited Conduct section of the Safeguarding Code.
- **Director of Safeguarding** – Person appointed by the WTA as the first point of contact for any inquiries, concerns or Complaints related to this Policy.
- **Harm** – Any detrimental effect to a person’s physical, mental, emotional, or social health and wellbeing.
- **Incapacitation** – Incapacitation means that a person is unable to make an informed, rational decision about whether to engage in a relationship or sexual relations. A person who is incapacitated may be unable to give Consent either temporarily (for example, due to excessive intoxication or sleep) or permanently (for example, due to a developmental disability).
- **Investigation** – A fact-finding task undertaken in response to a Complaint filed pursuant to the Safeguarding Code
- **Investigation Report** – A written document produced at the completion of an Investigation.
- **Investigator** – The person or persons tasked with fact finding in connection with a Complaint. Depending on the seriousness and complexity of the Complaint, that person or persons may either be a member of WTA Security overseen by the Director of Safeguarding or may be a person or persons outside of the WTA trained to conduct an Investigation.
- **Minor or Child** – An individual who is under the age of 18.

- **Misconduct** – Intentional wrongdoing; specifically, a deliberate Violation of the rules set forth in the Safeguarding Code.
- **Negligence** – Failure to use reasonable care in doing something; specifically, failure to reasonably conduct oneself in accordance with the Safeguarding Code.
- **Position of Authority** – Any Covered Person who holds a position of power or perceived power over another; or any Covered Person who holds a position of trust with another person (including, but not limited to, coach-athlete).
- **Preponderance of Evidence** – The standard under which the Investigation’s factual conclusions are assessed to determine whether or not a Violation of the Safeguarding Code has occurred: whether, in consideration of the evidence, a Violation was more likely than not to have occurred (i.e. greater than a 50% chance).
- **Respondent** – A Covered Person who is alleged to have Violated the Safeguarding Code.
- **Third Party Reporter** – Reports brought by a person(s) other than the Claimant.
- **Victim** – Any person who has experienced Misconduct as defined under the Safeguarding Code.
- **Violation** – Any conduct that is found to be against the rules outlined in the Safeguarding Code.
- **WTA Rulebook** – The comprehensive annual rulebook issued by the WTA each calendar year, as may be amended from time to time.

RULES AND APPLICABLE PROCEDURES

I. REPORTING REQUIREMENTS

A. General Requirements

All Adult Covered Persons have an obligation to know the reporting requirements under the Safeguarding Code. Because Minor Victims, particularly Minor Victims of physical and sexual abuse, may not fully understand the abuse being perpetrated against them, it is the responsibility of Adult Covered Persons to report any suspected Misconduct to the WTA Director of Safeguarding.

An Adult Covered Person must follow any other reporting requirements imposed by their organization (for example, members [or employees] of the United States Tennis Association [“USTA”] may have other reporting requirements pursuant to the USTA’s rules).

Reports can be made to the Safeguarding Department as follows:

Via e-mail:

Safeguarding@WTAtennis.com

Via WhatsApp or Text Message:

+ 1 (727) 855-2982

See also Appendix D

By phone call or email to the Director of Safeguarding or any Safeguarding Staff.

Reporting can also be easily done through the QR Codes provided on the Safeguarding Poster [Appendix D].

Additionally, if the Director of Safeguarding (or any Safeguarding Staff) is located on-site, a report may be made in person. The Director of Safeguarding (or Safeguarding Staff) will then make a written report of the incident reported. If a report is made to any person other than Safeguarding Staff, including but not limited to all other WTA Staff or tournament personnel, it is the responsibility of that person to notify Safeguarding Staff within 24 hours of receipt of the report, or as soon as reasonably practicable.

B. Reporting Suspected Child Abuse

Any Covered Person who reasonably suspects that a Minor participant has been subjected to any form of abuse, including sexual abuse, must:

- i. Report the suspected abuse to local law enforcement authorities; and
- ii. Report the suspected abuse to consistent with the reporting requirements in Section I.A.

It is the WTA's policy that all Covered Persons must report suspected Child Abuse to local law enforcement and comply with any applicable state or national laws. Additionally, if any Covered Person has knowledge of, or reasonably suspects that, another Covered Person seeking a WTA Credential possesses a conviction of sexual Misconduct involving a Minor (irrespective of jurisdiction), that Covered Person must report that information to the Director of Safeguarding.

C. Reporting Suspected Sexual Misconduct

Any Covered Person who reasonably suspects that an act of Sexual Misconduct as defined by this Safeguarding Code has occurred should immediately report the suspected Misconduct via one of the reporting mechanisms outlined in Section I.A. This requirement is irrespective of ages of the alleged perpetrator(s) and alleged Victim(s).

Additionally, if any Covered Person has knowledge of, or reasonably suspects that, another Covered Person seeking a WTA Credential possesses a conviction of sexual Misconduct (irrespective of jurisdiction), that Covered Person must report that information to the Director of Safeguarding.

D. Reporting Other Suspected Misconduct

As a general principle, any Covered Person who reasonably suspects that any other kind of Misconduct defined within this Safeguarding Code (any Misconduct other than sexual Misconduct) should report the suspected Misconduct to the Director of Safeguarding. The WTA recognizes that Covered Persons who might suspect Misconduct may not be certain that the alleged behavior constitutes a Violation of the Safeguarding Code; nevertheless, the WTA requests that when in doubt, the Covered Person make a report to the Director of Safeguarding so that the suspected Misconduct may be properly investigated.

E. Anonymous Reporting

The WTA does provide for anonymous reporting of Misconduct; however, an anonymous report may limit the WTA's ability to investigate and respond to that report. The WTA recognizes that it may be difficult for any Covered Person to come forward with information about suspected Misconduct, but encourages anyone with information about suspected abuse to provide their contact information when reporting to WTA Safeguarding. The WTA will aim to respect that Covered Person's request to remain anonymous throughout the Investigation process if they wish to do so; however, anonymity may not be guaranteed without compromise to the integrity of the Investigation¹.

F. Whistleblower Policy

The WTA has a Whistleblowing Policy in place [effective 2019] that applies to any "irregularity, or suspected irregularity, involving officers, directors, employees and volunteers, as well as consultants, agents, advisors, suppliers, contractors, outside agencies doing business with employees, and/or any other parties with a business relationship with the WTA" that could qualify under the Safeguarding Code.

The WTA ensures that any forthcoming Whistleblower, who reports in good faith, is protected from retaliatory behavior of any kind and the report will be treated in a confidential manner, to the extent possible. Investigation results and the identity of reporting individuals will be kept confidential to the extent possible, consistent with the need to conduct an adequate Investigation, and will not be disclosed or discussed with anyone other than those who have a legitimate need to know.

1. The WTA has implemented best practices for addressing vulnerable witness testimony as part of its appeal process as outline in Appendix G.

II. PROHIBITED CONDUCT

This section of the Safeguarding Code sets forth the behavioral expectations for Covered Persons in the WTA Environment related to emotional, physical, and sexual Misconduct.

Participation in the WTA environment requires the utmost respect for each and every Covered Person to maintain a safe and healthy tennis experience. It is a Violation of this Safeguarding Code for a Covered Person to engage in or tolerate any Prohibited Conduct, or to violate any applicable criminal or civil laws.

The WTA explicitly prohibits the following conduct:

- A. Criminal Charges or Dispositions of a Violent, Dangerous, or Sexual Nature
- B. Child Abuse
- C. Sexual Misconduct and Abuse
- D. Physical Misconduct and Abuse
- E. Emotional Misconduct and Abuse
- F. Interference with a WTA Safeguarding Investigation
- G. Retaliation
- H. Other Inappropriate Conduct

A. Criminal Charges Or Dispositions Of A Violent, Dangerous, Or Sexual Nature

The WTA reserves the right to withhold or revoke a WTA Credential from any Covered Person who has been charged or convicted of a crime that is inherently violent, dangerous, or sexual in nature². The age of a Criminal Charge or Disposition is not relevant to whether a Violation of the Safeguarding Code occurred but may be considered for sanctioning purposes. Each Criminal Charge and Criminal Disposition will be considered on a case-by-case basis.

2. A crime that is inherently violent, dangerous, or sexual in nature includes, but is not limited to any act of, or attempt to act to commit, the following: murder, assault [including sexual assault], Child abuse, possession of Child pornography, domestic abuse, and harassment of any kind. For the purposes of this rule, any criminal charge or disposition may be considered “dangerous” depending on the classification of the person seeking a WTA Credential. For example, a prior criminal conviction for driving under the influence may restrict the ability of a Covered Person seeking access to a WTA Credential to serve as a volunteer with transportation.

1. Definitions

a. Criminal Charge

A Covered Person who has any pending Criminal Charge(s) or warrant(s) for arrest in any jurisdiction for a crime that may be considered inherently violent, dangerous, or sexual in nature.

b. Criminal Disposition

A Covered Person been subject to any outcome of a criminal proceeding for a crime that may be considered inherently violent, dangerous, or sexual in nature, regardless of jurisdiction, other than a finding of “not guilty”. This includes, but is not limited to: a finding of guilt by a jury of a Covered Person’s peers, admission of guilt, a plea to a lesser offense resulting from a criminal charge for a crime that may be considered inherently violent, dangerous, or sexual in nature, a plea of no contest, any pleas analogous to a plea of guilty without admission of guilt, a disposition resulting in a criminal diversion program, a disposition resulting in deferred prosecution, or a disposition from any equivalent of a juvenile, drug, or mental health court program.

2. Sexual Crimes against Minors

Any Covered Person who has been convicted of a crime of a sexual nature against a Minor is ineligible to receive a WTA Credential. This includes, but is not limited to, Covered Persons from a jurisdiction that recognizes a sex offender registry or an equivalent program to notify the general public about a confirmed conviction for a Criminal Disposition involving a sexual crime against a Minor.

B. CHILD ABUSE

It is a Violation of the Safeguarding Code for any Covered Person to engage in, Aid or Abet, or be Complicit in Child Abuse. Any reasonable suspicion of Child Abuse should be reported to local authorities, as well as the Director of Safeguarding.

C. SEXUAL MISCONDUCT AND ABUSE

It is a Violation of the Safeguarding Code for any Covered Person to engage in, Aid or Abet, or be Complicit in Sexual Misconduct. Sexual Misconduct qualifies as, but may not be limited to, any of the following offenses (or attempts to commit them):

1. Sexual Harassment

Sexual Harassment is any unwelcome sexual advance, annoyance, request, or other unwanted conduct of a sexual nature. Sexual Harassment can be verbal, non-verbal, or physical, and can take place either in-person or by phone, computer, or other means of technology.

Some explicit examples of Sexual Harassment may include, but are not necessarily limited to, harassment involving a Victim's gender, sexual orientation, or gender identity.

The severity of the harassment can be multifactored, but the following may be considered when, for example, deciding to sanction a person for sexual harassment:

- a. The frequency of the harassment;
- b. The perceived hostility of the harassment by the victim (for example, if they felt threatened or pressured due to the harassment);
- c. The impact of the harassment on the victim's mental and emotional health;
- d. The impact of the harassment on the victim's ability to do their job; and
- e. Whether the harassment was directed at multiple victims as part of a hostile environment³.

3. A hostile environment is created when a Covered Person engaged in repetitive or persistent harassment or a single severe act of harassment.

2. Nonconsensual Sexual Contact

A Covered Person may not engage in Sexual Contact with another person without Consent. Sexual Contact includes any touching of a sexual nature of another person. This may include, but is not limited to: kissing, touching or groping (especially of the genital, buttock, or breast area), or causing another person to touch or grope the Covered Person.

3. Nonconsensual Sexual Intercourse

A Covered Person may not engage in Sexual Intercourse with another person without Consent. Sexual Intercourse is considered any oral, vaginal, or anal penetration by a penis, finger, mouth/tongue, or object – irrespective of the gender of the participants.

Nonconsensual Sexual Intercourse also includes intentionally exposing another person to a sexually transmitted disease (“STD”). If a Covered Person knows, or has a reason to believe that they are infected with an STD, and the Covered Person does not disclose that information to the person with whom they are engaging in Sexual Intercourse, that Sexual Intercourse will be presumed Nonconsensual.

4. Exploitation of a Sexual Nature

A Covered Person may not sexually exploit another person. Sexual Exploitation occurs when a Covered Person intentionally or knowingly:

- a. Records sexually explicit videos or takes sexually explicit photos of another person without their knowledge or Consent;
- b. Shares sexually explicit videos or photos of another person, whether directly in the presence of other people, or online (such as on social media or message boards);
- c. Engages or aids another in engaging in voyeurism, such as viewing another person in a situation where that person would have had a reasonable expectation of privacy (such as in a locker room); or
- d. Engages in the prostitution or sexual trafficking of another person.

5. Bullying Behavior of a Sexual Nature

A Covered Person may not engage in Bullying Behavior of a Sexual Nature. Bullying Behavior of a Sexual Nature constitutes acts such as hazing, making fun of a person's sexual orientation or relationships, or other inappropriate conduct that could be considered sexual in nature.

6. Gratuitous Exposure of Genitals

A Covered Person may not gratuitously expose their genitals to anyone for any reason, with the exception of use of a designated locker room for bathing and dressing during practice and training. No Covered Person, with the exception of Players and specific WTA and Tournament Staff are allowed in the women's locker room during tournament play. For "Locker Room Best Practices", please see Appendix A.

D. PHYSICAL MISCONDUCT AND ABUSE

Physical Misconduct, also referred to as Physical Abuse, is any intentional contact behavior that causes, or could reasonably be expected to cause, physical Harm or stress to another person.

Physical Misconduct and Abuse can present in several ways, including but not limited to the following:

1. Punching, hitting, striking, or slapping of any kind;
2. Throwing an object(s) at or in the general direction of another person (for example, a tennis racket or other equipment) in a manner that is meant to threaten another person⁴;
3. Forcing a person to perform physically, especially when against professional medical advice (including, but not limited to, practicing, exercise, and competition);
4. Forcing a person to practice or exercise as a form of punishment;
5. Forceful grabbing or pushing of another person;
6. Withholding food or water from another person, or forcing a person to diet;

4. This is distinguished from WTA Rule XVII.4.a.iii, which covers abuse of racquet resulting from anger.

7. Denying another person adequate sleep or rest;
8. Physical hazing of any other kind, such as restraining another person and committing physical acts upon that person, forcing another person to drink alcohol or do illicit drugs against their will; and
9. Any physical conduct that would be considered professionally unacceptable in the tennis environment.

E. EMOTIONAL AND PSYCHOLOGICAL MISCONDUCT AND ABUSE

Emotional and Psychological Misconduct, also referred to as Emotional and Psychological Abuse, is any intentional act or pattern of behavior directed at or against another person. Whether a Covered Person has engaged in emotional or psychological Misconduct is determined by the objective act(s) or behavior by the Covered Person; not whether Harm was intended by those act(s) or behavior.

Emotional Misconduct and Abuse can present in several ways, including but not limited to the following:

1. Verbal assault; using words to Harm a person that attacks them in a personal manner that does not serve a training or motivational purpose (including taunting, ridicule, name-calling, or intimidation);
2. Isolating a person, excluding a person, or purposely ignoring them (especially in the context of practices or group social events related to training);
3. Stalking behaviors causing a person to fear for their safety or experience emotional distress, including cyberstalking;
4. Gaslighting, or coercive control, causing another person to question their perception of reality;
5. Cyberbullying, which includes harmful communications directed towards a person through social media platforms. This may include use of rumors, false statements, threats of Harm, or other means of harassment.
6. The use of Artificial Intelligence “AI” to harass, gaslight, or engage in any other form of abuse covered herein.

F. INTERFERENCE WITH A WTA SAFEGUARDING INVESTIGATION OR OUTCOME

A Covered Person may not, for any reason, interfere with a WTA Safeguarding Code Investigation, nor any subsequent resolution procedures determining the outcome of an Investigation. This includes but is not limited to:

1. Tampering with evidence or witnesses,
2. Misrepresentation of evidence,
3. Falsification of evidence,
4. Harassment or intimidation of witnesses,
5. Attempts to discourage any person(s) from participating in an investigation or hearing,
6. Public dissemination of confidential information related to an investigation or a hearing,
7. Coercing, influencing, or bribing any other person to interfere with an investigation or a hearing; and
8. Failing to adhere to any restrictions or sanctions that may result from an investigation or a hearing.

G. RETALIATION

Retaliation is any action or threat to another person for reporting, in good faith, any suspected Misconduct pursuant to the Safeguarding Code or participating in any Investigation or subsequent resolution proceedings.

A Covered Person may not engage in retaliation, or attempt to engage in retaliation, against any other person. Acts of retaliation include but are not limited to behavior that is considered: (1) threatening; (2) coercing; (3) intimidating; or (4) harassing towards another person because that person either reported suspected Misconduct or participated in a Safeguarding Code Investigation or subsequent resolution proceedings.

H. MAKING AN INTENTIONALLY FALSE REPORT

A Covered Person may not knowingly and intentionally make a false report under the Safeguarding Code. A report is considered “false” if the allegations contained in the report did not occur and the person making that report knows that the events did not occur. Weaponization or malicious use of the Safeguarding Code against another Covered Person, for any reason, may also subject a to possible criminal and civil prosecution. A

genuine belief, suspicion, or concern that a Violation of the Safeguarding Code occurred, even if evidence provides otherwise or is unsubstantiated, does not constitute a “false” report.

III. OTHER MISCONDUCT

1. Abuse of Trust and Power Dynamics

The WTA does not prohibit two consenting Adults from entering into a relationship with one another; however, the WTA encourages Covered Persons to recognize the possible complications that can arise with contemporaneous personal and professional relationships (for example, when coaches and athletes enter into romantic relationships, or alternatively, are members of the same family).

However, the WTA prohibits any Covered Person from exploiting personal relationships to abuse, control, or manipulate any professional relationships.

2. Inappropriate Physical Contact with Minors

The WTA Tour involves Minor participants that can be especially vulnerable to inappropriate physical contact. Adult Covered Persons may not engage in inappropriate physical contact with Minor participants and doing so is considered an aggravated Violation of the Safeguarding Code in connection with policies outlined in Section D of this Code. Inappropriate Physical Contact includes [but is not limited to]: kissing, slapping or patting buttocks, engaging in excessive touching that does not have a functional or practical purpose in tennis; and any other touching that could be considered affectionate.

3. Violation of Accommodation Rules Set Forth in WTA Rulebook

It is a Violation of the Safeguarding Code for any Covered Person to stay in a hotel room with a Minor, unless the Covered Person is the legal Parent or Guardian of the Minor, consistent with the WTA Rulebook “Accommodation Best Practices”. For “Accommodation Best Practices”, please see Appendix B.

IV. PROCEEDINGS

A. Initiating Proceedings

Upon receipt of a Complaint by the Safeguarding Department, the Director of Safeguarding will determine if the alleged Misconduct falls under the jurisdiction of the Safeguarding Code or the WTA Rules Code of Conduct⁵. If appropriate, the Director of Safeguarding will cause an Investigation to be undertaken. The Director of Safeguarding is authorized to determine whether the Investigation should be conducted by WTA Staff or by a third-party Investigation service⁶. The Director of Safeguarding shall use his or her discretion as to whether to bring the decision to engage a third-party Investigation service to the WTA CEO.

B. Application of Substantive Rules

For any Complaint received that results in a subsequent Investigation requiring a decision under these rules, any alleged Misconduct will be evaluated under the substantive rules in effect at the time of the alleged conduct. For example, if the alleged Misconduct took place before the implementation of this Safeguarding Code, the substantive rules within the WTA Rules Code of Conduct at the time of the alleged Misconduct will be applied to determine if a Violation occurred. In all Cases, the procedural rules contained herein will be applied to resolve any Complaints arising under the Safeguarding Code or any analogous conduct prohibited by any previous WTA Rules Code of Conduct.

C. Multiple Related Claims

If any number of the following situations arise, the WTA reserves the right to administratively join Cases arising under the Safeguarding Code:

1. Multiple reports involving a single Respondent;
2. Multiple reports arising out of a single event or act or a series of acts;
3. Multiple reports arising out of a nexus of claims against a single Respondent or multiple Respondents; and/or
4. Cross-complaints arising out of a single event or series of events.

5. If a report of alleged misconduct falls under the WTA Rules Code of Conduct, the report will be handled in accordance with the applicable procedures contained therein, not pursuant to the Safeguarding Code of Conduct substantive rules and procedures herein.

6. Factors that would be considered in whether or not a Complaint results in retention of a third-party investigation service include (but are not limited to): the number of witnesses; the types of witnesses (i.e. WTA Staff); the seriousness of the allegations; and the number of allegations made.

D. Statute of Limitations

The Safeguarding Code is not bound by any concurrent or otherwise applicable criminal, civil, or rules-based statute of limitations or time bars of any kind. So long as a Complaint is received against a Covered Person as defined under the Code, the WTA reserves the right to investigate the claims regardless of when the allegations took place, and regardless of when the Complainant discovered and/or recognized a potential Violation of the Safeguarding Code.

E. Effect of Concurrent Proceedings

1. Criminal Proceedings

- a. The burden of proof for criminal proceedings is often higher than the burden of proof required to establish that a Respondent engaged in Misconduct under the Safeguarding Code. For that reason, the WTA is not required to dismiss any matters arising under the Safeguarding Code that were also the subject of criminal proceedings if the charges against the Respondent are dismissed or the Respondent is acquitted. However, the WTA reserves the right to weigh the outcome of a dismissal or acquittal in its own proceedings.
- b. Unless the Respondent is otherwise advised, the WTA reserves the right to suspend any Investigation or Appeal proceedings pending the outcome of the criminal matter.

2. Exhaustion of Procedures Under the Safeguarding Code

No Covered Person may seek to assert a legal claim of any kind against the WTA until he or she has exhausted all procedures provided for under the Safeguarding Code.

F. Notification to and Involvement of Law Enforcement

The WTA is made up of a variety of employees that, depending on jurisdiction, are considered “mandatory reporters”. The WTA, where appropriate, may be under a legal obligation to notify local law enforcement regarding alleged Misconduct arising under the Safeguarding Code (including, but not limited to, suspected Child Abuse or Sexual Misconduct perpetrated against a Minor).

At the request of any relevant law enforcement authority involved in safeguarding-related claims, WTA may suspend its Investigation while the law enforcement agency gathers evidence. The WTA may resume its Investigation when notified it is appropriate to do so by law enforcement. The WTA reserves the right to provide any evidence obtained in connection with an Investigation to law enforcement.

G. Recognition of Sanctions/Suspensions by other Organizations (Reciprocity)

The WTA reserves the right to impose any sanction on a Covered Person who has been found in Violation of another tennis organization's or sport governing body's Code of Conduct. This includes, but is not limited to, the Association of Tennis Professionals ("ATP"), the Grand Slam Board, the International Tennis Federation ("ITF"), any National Tennis Federation, the international Olympic Committee or any National Olympic Committee, or any other sport governing body or authority

H. Interim Measures

The WTA reserves the right to implement immediate interim measures to address any immediate concerns for the safety of the WTA Environment. This includes the immediate placement of a Covered Person, or anyone who may seek to become a WTA Credential holder, on the "Do Not Credential" list pending the outcome of any Investigation by the WTA, other tennis organization, or any other sport governing body. In particular, the WTA reserves the right to place any individual who has not previously received a WTA Credential or is registered and approved within the WTA Credential Eligibility System ("CES"), on the WTA "Do Not Credential" List without notification to the individual. Should that individual seek a WTA Credential through the WTA CES, that individual will have a right to Appeal his or her "Do Not Credential" status by written Appeal to the WTA CEO.

1. Appeal of Interim Measures

Any Respondent who is subject to Interim Measures may Appeal the imposition of those measures to JAMS, at any time after the imposition of Interim Measures, by written appeal to the WTA Director of Safeguarding, who will initiate Interim Measures proceedings.

Following the request, an Arbitrator shall be appointed no later than three (3) days after receipt of payment to JAMS by the Respondent. A pre-hearing conference by video shall take place within 48 hours of the appointment of an Arbitrator. The Interim Measures hearing shall take place within five (5) days of the pre-hearing conference, or as soon as reasonably practicable upon request by the Respondent.

The scope of the hearing will be limited to whether or not the imposition of Interim Measures against the Respondent are appropriate in light of the allegations made by a Complainant or information learned by the WTA. The hearing will not address whether a Violation of the Safeguarding Code occurred. The hearing will consist of oral arguments by the WTA and Respondent.

Following the hearing, the Arbitrator will issue a written decision as to whether the Interim Measures imposed by the WTA are appropriate. The Arbitrator may, in his or her discretion (i) entirely lift the Interim Measures; (ii) leave the Interim Measures in place; or (iii) modify the Interim Measures imposed by the WTA.

The Arbitrator's decision shall be determined by (i) the seriousness of the allegations contained in the Complaint against the Respondent; (ii) if Respondent's continued participation in the WTA Tour poses a risk to the well-being or safety of others, including the Claimant and/or alleged Victim; (iii) the allegations made against the Respondent are sufficiently serious that the Respondent's continued access to a WTA credential would be detrimental to the best interest of the WTA Tour.

The Arbitrator's Interim Measures decision is final and binding pending the outcome of the Investigation into the Complaint against Respondent.

The applicable fees related to any Interim Measures hearing shall be borne by the WTA and Respondent equally, consistent with the fee schedule provided by JAMS.

I. Other Resolution Procedures

Following receipt of a Complaint arising under the Safeguarding Code, the WTA may, in its discretion, resolve a matter without a formal Investigation or subsequent decision by the WTA CEO as follows:

1. Administrative Closure

A Complaint may be administratively closed as a result of: insufficient evidence, lack of participation of a Claimant in the Investigation process, lack of participation of witnesses, intentional filing of a false report, or other reasons as determined by the WTA.

2. Informal Resolution

Where appropriate, and subject to the rights of all Covered Persons to be safe in the WTA environment, the WTA may resolve an allegation of Misconduct prior to the completion of a formal investigation and decision by the WTA CEO. Any involved parties must be in agreement to the resolution, and the resolution will be considered a final and binding disposition of the Case itself.

J. Rights of the Participants

1. Participation by Parties and Witnesses

While no witness is required to participate in an Investigation or subsequent resolution proceeding, it is important for parties to participate to ensure a full and fair assessment of the merits of the allegations made.

Should a Complainant or Respondent choose not to participate in an Investigation, the WTA may complete its Investigation based upon other evidence; or, if insufficient evidence exists absent participation of the witnesses the WTA may in its discretion decide to close the Investigation.

2. Third-Party Witnesses

In some Cases, the Complainant may not necessarily be the Victim of an alleged Safeguarding Code offense. The Complainant may be a Third-Party Witness who is someone that has either witnessed an alleged Safeguarding Code Violation or has a reasonable belief that a Safeguarding Code Violation occurred. It is not uncommon for these individuals to request anonymity in the reporting and subsequent Investigation process. The WTA encourages anyone who has witnessed an alleged Safeguarding Code Violation to fully participate throughout the Investigation and subsequent resolution proceedings to ensure that all relevant evidence is provided and included throughout the Investigation and resolution process.

If a witness participates in the Investigation process, it is expected that the witness also makes themselves available for any subsequent resolution proceedings, whether before the WTA CEO or during the Appeal process.

3. Rights of the Respondent

A Respondent has a right to be informed of the claim(s) being made against him or her once an Investigation is initiated. During the Respondent's Investigation interview, he or she has a right to be informed of the factual allegations underlying the Complaint. If after an Investigation, the WTA determines that a sanction is appropriate, the Respondent is entitled to a written decision outlining the WTA's basis for its decision (as further outlined in Section L).

A Respondent is entitled to an advisor throughout the Investigation process. The advisor may be an attorney; however, such attorney may not be an employee of, board member of, or legal counsel to, any tennis governing body of any kind (including, but not limited to: the WTA, Association of Tennis Professionals (ATP), International Tennis Federation (ITF), USTA, Tennis Australia (TA), French Tennis Federation (FTF), Law Tennis Association (LTA), or any national or local governing body).

An advisor may accompany a Respondent during any meeting, proceeding, or conference related to the Investigation, questioning by the WTA CEO, or Appeal before an independent Arbitrator. While an advisor may attend an Investigation interview with Respondent, that advisor may not interfere with the investigation process or answer questions on Respondent's behalf.

A Respondent may elect to retain an advisor at any time during the Investigation or subsequent resolution proceedings, including for Appeal purposes.

4. Rights of a Minor Covered Person

Any Minor that is a Covered Person under the Safeguarding Code, whether a Respondent, alleged Victim, or witness, is entitled to have a parent or guardian present during all stages of an Investigation and any subsequent resolution proceedings, including during the Appeal.

5. Privacy

a. Generally:

The WTA is committed to protecting the privacy of all parties and all witnesses involved during the course of a Safeguarding-related Complaint. This privacy extends to all portions of the resolution process: from the time a Complaint is made, during the Investigation, during any Appeal hearing on the matter, and after the Appeal hearing has concluded. Information obtained by the WTA may be shared only as necessary with WTA staff, counsel, witnesses, and the Respondent. The WTA reserves the right to share information with other organizations as necessary, including (but not limited to) under the following circumstances: (a) an allegation involves the jurisdiction of another tennis or sport governing body; (b) if an interim sanction is imposed upon a Respondent pending the outcome of an Investigation; or, (c) if a sanction is imposed.

b. In Cases Involving Minors:

The WTA reserves the right to notify parents or guardian of Minors, regardless of their involvement in a Case, if that Minor may be at any risk to their health or safety.

c. Recordings

No recordings of any kind, either audio or visual, during the course of the Investigation or subsequent resolution proceedings, are allowed without explicit permission of the WTA and Consent of the parties and witnesses.

K. Investigation Report

All investigation conclusions must be documented in a final Investigation Report delivered to the Director of Safeguarding, who will then refer the findings to the WTA CEO. The Report will set forth the investigator's findings of fact, and include any relevant evidence. The Investigation Report will be considered confidential, and will not be disseminated to any parties unless requested for purposes of an Appeal, or if the WTA CEO wishes to question any party about the findings therein. Any dissemination of an Investigation Report outside of any of the above-referenced entities may result in a Violation as outlined in Sections O(5) and Q below.

L. WTA CEO Decision

The WTA CEO will determine whether the Investigation Report provides sufficient evidence (by a preponderance) to find that a Violation of the Safeguarding Code was committed. If there is a finding that the Respondent violated the Safeguarding Code, then the WTA CEO will determine an appropriate sanction as set forth in the Sanction Guidelines. The Respondent will then be notified regarding the decision, in writing, by the WTA Director of Safeguarding. The notification must include the specific Violation of the Safeguarding Code that was found, as well as the justification for the sanction imposed. Any communications made to a Respondent regarding the decision are considered

confidential⁷; however, the WTA reserves the right to provide a copy of such communications to other tennis or sporting organizations.

1. Conflict

Should a Complaint arising under the Safeguarding Code be received that presents a conflict to the WTA CEO wherein the WTA CEO must recuse him or herself, the following rules shall apply to an executive committee vested with the duties of the CEO:

The committee shall be comprised of three (3) voting members as follows: one (1) Tournament Class Directors, one (1) Player Class Director and one (1) Federation Class Director. A voting member may recuse him or herself due to conflict, in which circumstance he or she will be replaced by another Board Representative. The Director of Safeguarding or such other WTA executive as designated by the Board of Directors shall serve as a non-voting member and shall act as the primary liaison between the committee and the WTA Tour staff.

Each voting member shall have one (1) vote. A majority (2 out of 3) of the members will determine whether the Investigation Report provides sufficient evidence (by a preponderance) to find that a Violation of the Safeguarding Code was committed. If there is a finding that the Respondent violated the Safeguarding Code, then the committee will determine an appropriate sanction as set forth in the Sanction Guidelines.

M. Appeal

Following the Decision of the WTA CEO, a Respondent has 21 calendar days to request a hearing before an independent Arbitrator. The request must be made in writing to WTA Safeguarding Administration at safeguarding@wtatennis.com with copy to legal@wtatennis.com. If no request is received within 21 calendar days, the decision of the WTA CEO is deemed to be final. A Respondent may subsequently withdraw a request for Appeal.

7. A copy of the Decision will be provided to the Director of Safeguarding, WTA Legal, the Director of Security; and, if necessary, anyone who may be impacted by the decision (including, but not limited to, other WTA Staff).

N. Burden of Proof on Appeal

The Respondent-Appellant bears the burden of establishing that he or she did not violate the Safeguarding Code based on a Preponderance of the Evidence. This means that the Respondent-Appellant must demonstrate that it was more likely than not that he or she did not engage in conduct that violated the Safeguarding Code.

O. Appeal Rules

1. Application

These Rules shall apply to any Appeal arising out of the Safeguarding Code, and are governed by the laws of the state of New York, and the Federal Arbitration Act of the United States of America. Each Covered Person as defined under the Safeguarding Code agrees to the Appeal rules herein as the sole and exclusive procedure for resolving any Appeal of the issuance of any sanction imposed by the WTA. The rules provided in this policy shall apply to all Appeals hereunder, but to the extent these rules do not address a subject, the JAMS Comprehensive Arbitration Rules and Procedures shall apply.

2. Arbitrator Qualifications

The pool of Arbitrators shall consist of a qualified pool as referenced in Appendix C.

3. Parties

The parties to the Appeal will be the WTA and the Respondent. A Claimant, Victim, or Third-Party Reporter may serve as witnesses, but are not considered parties to an Appeal. Each party will be provided the opportunity to submit evidence and identify any substantive witnesses (i.e., witnesses that have relevant information about the allegations made).

4. Respondent's Right to Counsel

A Respondent is entitled to the representation of counsel during an Appeal, at the Respondent's expense. Respondent's counsel

is entitled to participate in all pre-hearing matters, confer with Respondent during the hearing, present arguments to the Arbitrator(s) on behalf of Respondent, and conduct witness examinations during the Appeal hearing before the Arbitrator. Counsel may not testify on Respondent's behalf or answer any Arbitrator questions directed to the Respondent.

The WTA and JAMS must be notified by Respondent of representation as soon as practicable.

5. Confidentiality

The Appeal, including all pre-hearing related matters, will be considered a confidential proceeding. No party or witness heard during the Appeal shall disclose any information regarding the proceedings to anyone outside of the Appeal process. While the outcome of an Appeal may be reasonably disseminated to stakeholders, any written decision issued by the Arbitrator received by the parties is to remain confidential.

6. Initiation of Proceedings

Following a notice of Appeal from Respondent, the WTA will initiate an Arbitration request with JAMS and inform them of the Respondent's information. A confirmation of the Appeal request will be sent to both parties, and will confirm the following:

- a. The parties to the Appeal;
- b. The nature of the Appeal;
- c. The confidentiality obligations of the parties;
- d. The information of the JAMS Administrator; and
- e. Subsequent instructions to the parties.

7. Arbitrators and Appointment

There shall be one (1) Arbitrator. After a request for Arbitration is received, JAMS will transmit a list of up to 11 qualified Arbitrators to each party, of which each party may strike up to two Arbitrators from that list. Once an Arbitrator is appointed, that Arbitrator will provide

a signed statement of impartiality and shall provide a disclosure statement regarding any potential conflicts of interest that could affect impartiality or independence.

8. Challenges to Appointment of Arbitrator

Any challenge to the appointment of any Arbitrator(s) by either party must be received by the Arbitration Administrator within three (3) business days of notification to the parties. The party must state the grounds for such a challenge and the basis upon which they believe the Arbitrator will not be able to fairly assess the merits of the Case before him or her. Upon receipt of the challenge, JAMS will consider and will issue a decision. An Arbitrator may be questioned by JAMS regarding any potential conflicts of interest to preserve the integrity of the tribunal. If JAMS determines that a selected Arbitrator possesses a conflict of interest and that conflict is not waived by the parties, JAMS will appoint a new Arbitrator from the selected pool that was not struck by either party to the Appeal.

9. Preliminary Matters

Upon confirmation of the appointment of an Arbitrator(s), the Arbitration Administrator will invite the parties to confer with the Arbitrator regarding all preliminary matters as soon as practicable consistent with the parties' schedules and in accordance with the following:

- a. At least 72 hours (3 days) prior to the scheduled conference, the Respondent will provide the Arbitration Administrator with a summary of Respondent's Statement of Appeal, which includes a factual rebuttal to the Safeguarding Code Violation(s) found by the WTA, the defenses that Respondent intends to raise during Arbitration, and any material witnesses that Respondent intends to call during Arbitration.

10. Ex Parte Communication

Except under circumstances agreed to by the parties or ordered by the Arbitrator, no party shall engage in ex parte communications with an Arbitrator or prospective Arbitrator. All documents submitted

for the purposes of the Appeal shall be directed to the Arbitration Administrator with copy to the Arbitrator and opposing party unless otherwise ordered by the Arbitrator or agreed-upon by the parties.

11. Requests for Appeal to Review Sanctions Resulting from Criminal Charge(s) or Disposition(s)

A Respondent may challenge a sanction imposed by the WTA predicated on a Criminal Charge or Disposition; however, the scope of the Arbitrator's review is limited to determine whether the sanction imposed is appropriate in light of the Criminal Charge(s) or Disposition(s) against the Respondent. The Arbitrator will not review any facts of Respondent's criminal Case *de novo*. All facts determined in the criminal proceedings will be presumed to be true absent legally extenuating circumstances (including, but not limited to: prosecutorial Misconduct, perjury by a witness, or violations of applicable procedural due process in the relevant jurisdiction).

If, at any time, a Respondent's Criminal Charge(s) are dismissed, or alternatively, Criminal Disposition(s) are overturned on Appeal, the Respondent may submit a written Appeal for reconsideration to the WTA Director of Safeguarding. If that request is denied, the Respondent may file a notice of Appeal to review any sanction imposed by the WTA based upon the original Criminal Charge(s) or Disposition(s).

12. Admissibility of Evidence

Any evidence not introduced during the course of the Investigation process will not be permitted to be presented during any subsequent Appeal without express agreement from the Parties.

The following additional rules apply to the admissibility of evidence during an Appeal hearing:

a. Character Evidence

Any evidence relevant to the allegations of Misconduct made and has the discretion to determine the relevance of any proffered evidence. Generally, character evidence will not be considered; however, witnesses may generally provide opinions as to a Respondent's reputation or character traits.

b. Assessment of Credibility of Witnesses

Generally, the Arbitrator reviewing a matter on Appeal must hear testimony of witnesses in order to make an assessment of credibility as to factual allegations. In circumstances where the safety of the witness is at issue, a request may be made to the WTA CEO or Arbitrator to be questioned while not in the presence of a Respondent.

c. Prior Relevant Conduct by Respondent

Prior conduct of a Respondent may be considered for any purpose, including to establish a pattern of behavior. This includes conduct not considered under Section A, as well as conduct that Respondent may not have been previously penalized for under either the WTA Rules or Safeguarding Code.

d. Sexual History of Claimant(s) or Witnesses

Generally, evidence relating to sexual behavior of any Claimant(s) or Witness(es) outside of the scope of the reported conduct will not be considered by the WTA during its Investigation, nor admitted as evidence during any subsequent resolution procedure, unless the probative value of the such evidence outweighs any danger of Harm to the Claimant(s) or Witness(es).

P. Stay of Sanction Period

The WTA may, in its sole discretion, grant a request for a stay of a suspension period pending the outcome of an Appeal. A request for a stay of any sanction will only be considered where Respondent can demonstrate:

1. They do not pose any threat or danger to the WTA Tour environment;
2. An intact sanction would cause undue hardship to a WTA member; and
3. Any stay of a sanction period would not cause Harm to any Claimant, Victim, and/or witness.

Q. Confidentiality

Confidentiality of all Safeguarding-related Cases is critical to the integrity of each stage of a proceeding, from the reporting stage to the final disposition. All original Complaints, Investigation Reports, and other work product are entirely confidential and may not be shared with any party outside of the proceedings, except as may be required by applicable law or authorized by the WTA. Any dissemination of the following may constitute a Violation of this Safeguarding Code, and is subject to penalty:

1. Complaint(s) and Responses;
2. Witness Statements and/or Interviews;
3. Investigation Report;
4. WTA CEO Decision;
5. Any correspondence between parties and/or attorneys of record;
6. Any audio recordings or transcripts relating to a Safeguarding matter; or
7. Any documents or evidence submitted for the purpose of Appeal.

Parties to the matter are not restricted from discussing the incident or any outcome resulting from a Safeguarding-related complaint.

8. Comment to Section IV: while any outcomes of Investigations arising from alleged Violations of the Safeguarding Code are confidential, examples of previous sanctions issued in cases that are similarly situated may be provided as an example to assist an Arbitrator in making a decision on appropriate sanction.

V. Sanction Guidelines For Violations Of The Code

If the WTA CEO determines that there is sufficient evidence presented in the Investigation Report to support a finding that a Violation of the Safeguarding Code occurred, then he or she must determine an appropriate sanction [if any]. The WTA CEO has the discretion to apply a range of sanctions proportionate to the Violation found under the Safeguarding Code. On Appeal, while matters will be reviewed *de novo*, the Arbitrator should assess the appropriate sanction, if any, based upon the sanctions available .

A. Sanctions Available

1. Warning

An official, written notice and formal admonition that a Respondent has violated the Safeguarding Code. Generally, a warning is appropriate where Respondent is facing a first offense Violation for a non-violent offense, and will remind the Respondent that any future Violations of the Safeguarding Code may result in a more severe penalty.

2. Fine

A monetary penalty imposed for Violation of the Safeguarding Code intended to ensure compliance and, in some Cases, provide restitution to the WTA for costs incurred as a result of the Investigation.

3. Probation

A period of time during which any occurrence of additional Violations of the Safeguarding Code will result in additional disciplinary measures, usually resulting in a suspension.

4. Suspension of WTA Credential

A suspension, for any specified period of time, from the ability to obtain a WTA Credential at any WTA Tournament. A suspended Respondent is eligible to obtain a WTA Credential after the suspension, subject to completion of other required conditions of the sanction period, if any.

5. Suspension or Termination of WTA Membership Suspension or Termination of WTA Membership for any association or full member of the WTA Tour.

6. Suspension of Access to WTA Tournaments

A suspension, for any specified period of time, from the ability to obtain a WTA Credential at any WTA Tournament and suspension from attending any WTA tournament, enforceable by WTA and tournament security.

7. Permanent Suspension

An indefinite suspension from the ability to obtain a WTA Credential at any WTA Tournament and suspension from attending any WTA event as a spectator or otherwise, usually reserved for the most serious offenses (including, but not limited to: sexual abuse, physical violence, conviction of a serious crime, or multiple offenses).

8. Other Discretionary Sanctions

The WTA CEO may use their discretion to impose other sanctions when a Violation of the Safeguarding Code is found, including, but not limited to the following:

- i. Educational programs;
- ii. Mentorship programs;
- iii. Therapy;
- iv. No contact orders;
- v. Probationary supervision;
- vi. Disqualification or removal from the WTA Coach Program; or
- vii. Other conditions deemed appropriate for reinstatement.

B. Permanent Suspension Following Three Violations

Any Respondent who is found to have committed three Violations of the Safeguarding Code is automatically permanently suspended from the ability to obtain a WTA Credential and permanently suspended from attending any WTA event as a spectator or otherwise.

C. WTA CEO Considerations

The WTA CEO should consider relevant factors in order to determine an appropriate sanction. These considerations include, but may not be limited to, the following:

- Prior Complaints;
- A pattern of similar behavior;
- The ages of the parties involved;
- The roles of the parties involved;
- Whether the Respondent is a perceived threat to the WTA environment;
- Respondent's cooperation during the Investigation and resolution process;
- Respondent's admissions; and
- Any other mitigating or aggravating factors that the WTA CEO deems relevant.

D. Policy on Sanction Publication

It is WTA policy that any sanctions resulting from a WTA CEO decision, or the result of any subsequent Appeal, not be published on the WTA website unless extenuating circumstances require the WTA to do so (e.g., a contemporaneous public criminal trial). The WTA will notify any affected parties of an outcome (e.g., if a coach is sanctioned, any athletes receiving coaching by Respondent will be notified).

APPENDIX

APPENDIX A- LOCKER ROOM BEST PRACTICES

It is a long-standing WTA policy that only WTA players and essential WTA female staff be allowed access into the locker room. Anyone attempting to access a WTA locker room must be in possession of a credential that explicitly provides access to the locker room area, and must show that credential to the person(s) providing security to the locker room areas. Any Covered Person who accesses, or attempts to access, the WTA locker room area without a qualified credential is subject to revocation of their WTA credential and possible further sanctions.

Others Credentialed Covered Persons who may have locker room access include:

- Cleaners;
- Attendants;
- Tournament Physicians; and
- Other personnel as required to undertake essential maintenance.

All persons using the locker rooms should follow these guidelines:

- Use of any devices (including cell phones) with recording capabilities, including voice recording, still cameras and video cameras, in locker rooms, changing areas or similar spaces is prohibited.
- It is recommended that there be no media access of any sort at any time in the locker rooms when players are present.
- Under no circumstances shall an unrelated Adult be permitted to be alone with a Minor athlete in a locker room or changing area, except under emergency circumstances.
- Regular and random sweeps of locker rooms and changing areas shall be conducted by the tournament Locker Room/Operations management to ensure the facilities are being used respectfully as a private space.
- Locker room attendants should review the WTA Safeguarding Code and must complete WTA Safeguarding education. It is recommended that Locker Room attendants be physically placed to monitor activity in the Locker room as a part of their role.

- Adults shall make every effort to recognize when a Minor athlete is in the locker room or changing area during practice and competition and, if she does not return in a timely fashion, must check on the Minor athlete's whereabouts and well-being.
- Parents of Minor WTA members are only permitted in WTA locker rooms in emergency circumstances and usually only by invitation from the Tournament Physician or other WTA staff located in the locker room.
- No persons who were born or identify as male will be permitted in WTA locker rooms.

APPENDIX B – ACCOMMODATION BEST PRACTICES

RECOMMENDATIONS AND REQUIREMENTS WHEN SELECTING ACCOMMODATIONS

TOURNAMENT HOTEL SELECTION

Tournaments should consider the following safeguarding factors when selecting their hotels:

Location

- Located in safe part of the Tournament host municipality
- Hotel grounds and surrounding areas are well-lit and secure

Safety and Security

- Hotel must agree to supply to the WTA names of any and all persons sharing a room with a WTA player aged under eighteen (18)
- Reception or management staff must be available 24 hours/day
- Security must be available 24 hours/day
- Emergency response must be available 24 hours/day
- Criminal background checks or security screening for all staff
- Guests must show identification to get room keys
- Rooms should only be accessible from a secure, staffed lobby area
- In-room safe facilities available for guest valuables

Privacy

- Hotel must have measures in place to ensure high profile players and VIPs are not harassed in public areas of the hotel (e.g., lobby, pool, gym, restaurants, transport area and other potentially public facing areas) by public or media

Staff Training

- Hotel staff should be trained in how to recognize potentially dangerous situations for WTA members, staff, and other Covered Persons
- Hotel staff should never divulge whether a WTA member is staying at the hotel, except for in accordance with anti-doping testing requirements

- Staff should be trained to recognize suspicious behavior by non-guests
- Staff should be trained to always request identification document when issuing room keys (and subsequently any replacement keys)

Emergency Procedures

- Hotel must have emergency and evacuation procedures in place
- Hotel must be compliant with fire codes and other jurisdictional requirements (such as regional natural disasters)
- Hotel must be fitted with working smoke detectors/alarms/sprinkler systems

Facilities

- Hotel should have ADA accessible rooms
- Hotel should have secured access to gym facilities

Rooms

- Guestrooms should require keycard entry and be equipped with deadbolts/ security latch
- Guestroom windows should be fitted with security locks and capacity to limit opening especially on high floors
- Guestrooms should be equipped with one-way peep holes
- Guestrooms must be equipped with telephones
- Guestrooms should have bathroom and toilet facilities in each guestroom, separated from sleeping area by a door that closes and locks

It is recommended that tournaments use a checklist to evaluate hotel suitability from a Safeguarding perspective.

GUIDELINES FOR NON-HOTEL ACCOMMODATION

Any non-hotel Accommodation provided or recommended by the tournament should also be screened for suitability. In the interests of safety, tournaments are discouraged from providing hosted accommodation (for example, AirBnBs where hosts are on-premises).

The Accommodation Standards

- Where possible, the standards should be as close as possible to those of a hotel
- Accommodation should have property management or vetted contact.
- Accommodation should be clean and located in a safe area, preferably within reasonable commuting distance of the tennis venue.
- Accommodation should have secure and working locks on all entrances to the abode.
- Accommodation should have adequate outdoor lighting.
- If the accommodation offers a swimming pool, access to the pool should be secured either through a fence or locked gate access.
- Accommodation should be equipped with internet and within cellular service (or otherwise equipped with a land line).
- Accommodation should provide a list of emergency numbers and contacts for local emergency services (fire, ambulance, police, medical, hospital emergency, pharmacy) provided.
- Accommodations should reasonably provide contact information for facilities maintenance where appropriate.

WTA SAFEGUARDING CODE HOTEL ROOM POLICY

- The Tournament Standards of Performance require that all Tournaments notify the Tour Supervisor of all housing arrangements. Each Tournament is required to provide the WTA with an official hotel room list for all official hotels (Main Draw and Qualifying) upon request. (See also 2024 WTA Rulebook, XVIII.A.13)
- The highest risk situations for sexual abuse and harassment occur when a player is in an isolated and unsupervised place with another person, such as in a hotel room. For these reasons, WTA members and vulnerable Covered Persons should have their own hotel room.
- The Hotel Room Policy specifically prohibits a Player Support Team Member from sharing a hotel room with a Minor player (under the age of 18) unless the Player Support Team Member is the player's parent/legal guardian.
- The WTA will request information about hotel accommodation from WTA Tournaments for the purpose of monitoring adherence to the Hotel Room Policy and the Safeguarding Code and will only be used internally by the WTA.
- Information requested must include the room number and name of the Minor player and person(s) with whom she is sharing her room when applicable.
- Potential Violations will be investigated as a Violation of this Safeguarding Code.

APPENDIX C – ARBITRATOR QUALIFICATION REQUIREMENTS

For all appeals before the independent Arbitrator, the independent Arbitrator must possess the following qualifications:

A. Independence

Each Arbitrator appointed to hear an appeal must be completely independent, meaning the following:

1. The Arbitrator has never been employed by, served as a Board Member of, or otherwise engaged in any contracting with the WTA;
2. The Arbitrator has no relationship with any witnesses or party (for the avoidance of doubt, professional relationships between Arbitrators and counsel for any party are not subject to this rule); and
3. The Arbitrator has no actual or perceived conflicts of interest that could reasonably be expected to influence the outcome of any Appeal.

Each Arbitrator will be required to disclose any potential conflicts to the parties as set forth in Section III.P.7, *supra*. Arbitrators will make such disclosures and adhere to the provisions of the International Bar Association Guidelines on Conflict of Interest in International Arbitration.

B. Experience

Arbitrators should have experience serving in a sports arbitration panel and/or a safeguarding-related arbitration panel. This includes, but is not limited to, the following service or experience:

1. The Court of Arbitration for Sport;
2. Arbitrations Arising out of the U.S. Center for SafeSport;
3. Any “first instance” sports arbitration panels;
4. Former judges experienced in hearing safeguarding-related matters in their respective jurisdiction;
5. Former attorneys experienced in working on safeguarding-related matters in their respective jurisdiction;

6. Social workers who have addressed safeguarding issues; or
7. Any comparable work experience, especially those with an understanding of abuse and recidivism.

APPENDIX D – WTA SAFEGUARDING POSTER

WTA

MAKE THE REPORT

Please report if you personally experience, witness, or suspect any type of abuse or misconduct including:

SEXUAL ABUSE OR MISCONDUCT

Any sexual contact involving a minor, or behavior that occurs without consent (against a person's will).

PHYSICAL ABUSE

Any intentional contact behavior that causes, or could reasonably be expected to cause, physical harm or stress to another person.

PSYCHOLOGICAL OR EMOTIONAL ABUSE

Any intentional act or pattern of behavior (verbal assault, isolation, stalking, gaslighting, bullying, etc.) directed at or against another person.

ONLINE ABUSE OR HARASSMENT

Any harmful communications directed towards another person through social media platforms.

RETALIATION

Any act or threat to another person for reporting any suspected abuse/misconduct or participating in any investigation.

CRIMINAL CHARGES OR CONVICTION

Any criminal charge that is inherently violent, dangerous, or sexual in nature is a violation of the safeguarding code.

PLEASE REPORT ANYTHING YOU WITNESS, EXPERIENCE, OR SUSPECT THAT THREATENS THE PHYSICAL OR EMOTIONAL SAFETY OR WELLBEING OF YOU OR SOMEONE ELSE.

HOW TO MAKE A REPORT:

If you or someone else is in immediate danger or in need of emergency assistance, please call local emergency services.

MAKE A FORMAL REPORT

- File a report with the Safeguarding Department by emailing: safeguarding@wtatennis.com
- Make a report to a WTA Safeguarding staff onsite.
- Scan the QR code:



REPORT ANONYMOUSLY

- Make a report anonymously via RealResponse secure portal
- Send a message to +1 (727) 855- 2982 via SMS or WhatsApp
- Scan the QR code:



All reports made to WTA Safeguarding are treated as confidential.

NEXT STEPS:

- Contact on-site support: please contact a member of the WTA Performance Health team (Mental Health Care Provider, Primary Health Care Provider, or Tournament Physician), Player Relations, or a WTA Supervisor on-site if you are a witness or a victim and need support
- Support for the victim: WTA Mental Health and Performance, WTA Safeguarding Wellbeing Toolkit.

For additional questions or concerns, contact Lindsay Brandon, Director of Safeguarding at: lbrandon@wtatennis.com or scan the QR code on the left

APPENDIX E – CREDENTIALLED PERSON ANNUAL ACKNOWLEDGEMENT AND CONSENT

CREDENTIALLED PERSON

ANNUAL ACKNOWLEDGEMENT AND CONSENT

This annual form must be completed and signed by all player support members and tournament guests receiving credentials and any other individuals receiving credentials at the request of player or tournament personnel.

1. GENERAL ACKNOWLEDGEMENT AND CODE OF CONDUCT CONSENT

I understand that that the tournaments comprising the WTA Tour are governed by the WTA Tour, Inc. (“WTA”). I agree to be bound by and comply with the WTA Code of Conduct, a copy of which is included in the WTA Rulebook. I hereby submit to the jurisdiction and authority of the WTA to manage, administer and enforce the Code of Conduct and to the jurisdiction and authority of the WTA CEO and WTA Board of Directors to determine any charges brought under the Code of Conduct.

2. ANTI-CORRUPTION CONSENT

I am bound by and will comply with the Tennis Anti-Corruption Program (“TACP”), a copy of which is available online at <https://www.itia.tennis/rules/tacp>. I acknowledge that I have had the opportunity to review the TACP and that I understand, accept, and agree not to violate any of the provisions therein. The TACP prohibits certain conduct by me, including, but not limited to, (i) wagering on the outcome or any other aspect of any tennis match, (ii) contriving or attempting to contrive the outcome or any other aspect of any tennis match, (iii) receiving or providing consideration in exchange for Inside Information (as defined in the TACP), (iv) facilitating, encouraging or promoting any other person to wager on the outcome or any other aspect of a tennis match, (v) associating with any Related Person (as defined in the TACP) who is serving any period of ineligibility under the TACP or has been convicted or found in criminal, disciplinary or professional proceedings to have engaged in conduct which would have constituted a Corruption Offense (as defined in the TACP) if the TACP had applied to them, and (vi) failing to report any knowledge I may have regarding potential violations of the TACP. I acknowledge that I have an obligation to report any approaches that I may receive and any known or suspected offenses by others as soon as possible. I accept that I must cooperate fully with

investigations and shall not tamper with or destroy any evidence. I hereby submit to the jurisdiction and authority of the International Tennis Integrity Agency (“ITIA”) to manage, administer, and enforce the TACP and to the jurisdiction and authority of the ITIA, Anti-Corruption Hearing Officer, and the Court of Arbitration for Sport, as applicable, to determine any charges brought under the TACP. I acknowledge that the TACP contains an agreement to arbitrate disputes in accordance with the process described in the TACP and I am bound by the TACP until the earlier of (x) two years after the last Event (as defined in the TACP) at which I receive accreditation or (y) the date I notify the WTA in writing that I no longer intend to receive accreditation at any further Events, unless, at either such time, (a) I am subject to a period of ineligibility under either the TACP or TADP (in which case I will cease to be bound by the TADP upon the conclusion of my period of ineligibility) or (b) I am aware that I am the subject of an investigation by the ITIA or law enforcement (in which case I will cease to be bound by the TACP when such investigation is closed, or after 10 years, whichever is earlier). Nothing in this paragraph 2 shall modify or limit the full text of the TACP.

3. ANTI-DOPING CONSENT

I am bound by and will comply with the Tennis Anti-Doping Programme (“TADP”), a copy of which is available online at <https://www.itia.tennis/tadp/rules/>. I hereby submit to the jurisdiction and authority of the ITIA to manage, administer, and enforce the TADP and to the jurisdiction and authority of the ITIA, Independent Anti-Doping Tribunal, and the Court of Arbitration for Sport, as applicable, to determine any charges brought under the TADP.

4. DATA CONTENT

I acknowledge and agree that I may not (i) continually collect, disseminate, transmit, publish or release from the grounds of the Tournament any match scores or related statistical data during match play (from the commencement of a match through its conclusion) for any commercial or gambling purposes, or (ii) film, photograph, broadcast, stream, publish, transmit and/or otherwise offer to the public (or assist any third party in offering to the public), on a live or on a delayed basis, in whole or in part, and whether on a free basis or subject to payment, any sound recording, photograph, video footage, motion picture, film and/or other audio-visual content

captured by any means whatsoever inside the Tournament site (except as is allowed in the Tournament Accreditation Policy).

5. DECLARATION

I acknowledge that I have read and understand all elements of this document.

I acknowledge that my credential may be revoked at any time, with or without cause, by the WTA, the Tournament, or their respective agents or representatives.

6. ELECTRONIC SIGNATURE

I agree and understand that by typing my name, that this shall be deemed an electronic signature. I agree and understand that such electronic signature is the legal equivalent of my manual/handwritten signature and I consent to be legally bound to this Credentialed Person Annual Acknowledgement and Consent. I also agree that no certification authority or other third-party verification is necessary to validate my electronic signature and that the lack of such certification or third-party verification will not in any way affect the enforceability of my electronic signature. I also confirm that I am the individual authorized to sign this document.

I acknowledge and agree that I may request to sign a paper version of this document.

We recommend that you print or save a copy of this annual form for future reference.

captured by any means whatsoever inside the Tournament site (except as is allowed in the Tournament Accreditation Policy).

5. DECLARATION

I acknowledge that I have read and understand all elements of this document.

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I acknowledge and agree that I may request to sign a paper version of this document.

We recommend that you print or save a copy of this annual form for future reference.

APPENDIX G – SAFEGUARDING AND MENTAL HEALTH

The WTA recognizes that safeguarding-related Misconduct impacts everyone involved. The WTA Mental Health and Performance team is available to all WTA members who may be impacted by any form of Misconduct outlined in this Safeguarding Code. A WTA member need not have made a report to consult the WTA Mental Health and Performance team. Any WTA member who makes a report under this Safeguarding Code will be provided a referral to WTA Mental Health and Performance for wellbeing purposes, as the impact of experiencing or witnessing abuse can manifest itself in many different ways.

For all other Covered Persons, the WTA Director of Safeguarding has a list of resources available to anyone whose mental or physical health may be impacted by a safeguarding-related matter. Please contact Safeguarding@wtatennis.com or LBrandon@wtatennis.com with any questions about these resources. Your information will be treated as confidential.

APPENDIX H - VULNERABLE WITNESSES PROCEDURAL GUIDELINES

1. A witness or testifying party should be considered vulnerable when testifying may risk traumatizing or retraumatizing the witness, present a threat to the personal safety of the witness (or possibly others), or create significant risk to the reputation of, or of retribution toward, the witness. Minors and witnesses with a mental disability will also generally qualify as vulnerable witnesses.
2. When appropriate, procedural accommodations to safeguard a vulnerable witness may either be requested by a party on behalf of their witness(es) (at any reasonable time before the hearing) or adopted by the Arbitrator; the decision on whether to adopt procedural accommodations shall be in the sole discretion of the Arbitrator. The other party or parties should have the opportunity to respond to any request within the time period set by the Arbitrator; if the Arbitrator is considering adopting procedural accommodations, then such decision shall only be taken after considering the views of all parties in relation thereto.
3. Hearings involving a vulnerable witness should generally be held in private, and considerations of protection of the identity of a vulnerable witness shall be undertaken by the Arbitrator when writing any decision or award. The Arbitrator can order one or more of the following measures, and/or other measures as appropriate under the circumstances of the Case as procedural accommodations for a vulnerable witness:
 - a. To permit remote or other means of providing testimony such that the witness may avoid direct contact with an adverse party;
 - b. To permit a witness to testify anonymously (provided their identity can be verified by the Arbitrator);
 - c. To require advance review and approval by the Arbitrator of questions for cross-examination (to prevent identification of witnesses and/or to avoid (re)traumatizing them);

- d. To exercise a degree of control over the manner of questioning to avoid (re) traumatizing alleged victims of abuse, particularly with respect to highly sensitive and traumatic questions during cross-examination; and
- e. To permit the Arbitrator, rather than the adverse party, to ask certain questions of the witness, to accommodate the witness' vulnerability.

APPENDIX I - WTA SAFEGUARDING PROGRAM FEE SCHEDULE

PROFESSIONAL FEES

\$800 per hour

- Other professional time (including additional hearing time, pre- and post-hearing reading and research, conference calls, and drafting orders and decisions) will be billed at \$800 per hour. This may include travel time.
- All travel expenses are billed at actual cost.

ADMINISTRATIVE FEES

FILING FEE

\$2,000 - Two Party Matter

\$3,000 - Matters involving three or more parties

- Entire Filing Fee must be paid in full to commence the proceedings.
- A refund of \$1,000 will be issued if the matter is withdrawn within five days of filing. After five days, the Filing Fee is non-refundable

FACILITY FEE

- No charge

CASE MANAGEMENT FEE

- 13% of Professional Fees
- The Case Management Fee includes access to an exclusive nationwide panel of judges, attorneys, and other ADR experts, dedicated services including all administration through the duration of the case, document handling, and use of JAMS conference facilities including after hours and on- site business support. Weekends and holidays are subject to additional charges.

CANCELLATION/CONTINUANCE POLICY

NUMBER OF DAYS	CANCELLATION/CONTINUANCE PERIOD	FEE
1 day or more	14 days or more prior to session	50% REFUNDABLE
Sessions of any length	Inside the cancellation/continuance period	NON-REFUNDABLE

- Hearing fees are 50% refundable if cancelled or continued before the cancellation date. Hearing fees, are non-refundable if time scheduled (or a portion thereof) is cancelled or continued after the cancellation date. The cancellation policy exists because time reserved and later canceled generally cannot be replaced. In all cases involving non-refundable time, the party causing the continuance or cancellation is responsible for the fees of all parties.
- Refund Policy: Overpayments are issued to the billing contact on the matter regardless of the paying party.
- A deposit for the full price of JAMS fees and neutral rates is due at the time a hearing is requested. All fees are due upon receipt. Payment must be received before services are rendered.
- JAMS reserves the right to cancel the hearing if fees are not paid as required by the applicable cancellation date and JAMS confirms the cancelation in writing.